

Counterfactual Timely Petition for Panel and En Banc Rehearing

Filed: June 22, 2026 Docket No. SYN-CA4-26-CV-4102-CF-NEVER-OCCURRED

United States Court of Appeals for the Fourth Circuit

Asterglen Freight Software, Inc., Appellant, v. Copper Kestrel Logistics, LLC and Meridian Silt Holdings, LLC, Appellees.

Asterglen petitions under Federal Rule of Appellate Procedure 40 for panel rehearing and rehearing en banc of the June 8, 2026 judgment dismissing this appeal and remanding the matter. This combined petition is filed on June 22, the final day of the fourteen-day period. Asterglen asks the Court to reconsider its conclusion that the district court's February 4 certification failed to support appellate jurisdiction over the final disposition of Count I.

The petition presents a confined procedural question. When a district court grants a motion expressly requesting Rule 54(b) relief, enters a separate judgment dismissing one claim with prejudice, and leaves no further task concerning that claim, must the court of appeals dismiss solely because the certification order omits the words “no just reason for delay”? Asterglen submits that the order, motion, judgment, and docket context together communicate the determination Rule 54(b) requires. Alternatively, Asterglen asks the panel to retain the appeal while the district court supplies a fuller statement. The petition does not ask the Court to decide the contract merits before finding jurisdiction.

Procedural history relevant to rehearing

The district court granted Copper Kestrel partial summary judgment on January 12, 2026 and dismissed Count I with prejudice. Count II against Meridian Silt and Copper Kestrel's counterclaim remained pending. Asterglen then requested a Rule 54(b) certification. On February 4, the district court granted that request and entered a separate judgment on Count I. The order did not recite an express determination that there was no just reason for delay.

Asterglen filed its notice of appeal on March 3. The appeal was docketed on March 5, the record was completed, and the parties submitted full briefs. On June 5, the district clerk certified that Count II and the counterclaim remained unresolved and that no later order supplied additional certification findings. The panel entered its opinion and judgment on June 8. It concluded that the February 4 order did not satisfy Rule 54(b), dismissed the appeal, and remanded the matter without reaching Asterglen's challenge to the Count I summary judgment.

The judgment left the January 12 ruling in place; it did not vacate that ruling or decide whether Section 9.2 barred Asterglen's \$480,000 contract claim. The unresolved claims continued in the district court. Asterglen seeks rehearing now because the panel's insistence on a particular express statement gives insufficient effect to the district court's grant of the Rule 54(b) motion and because a short corrective remand could avoid dismissal after briefing was complete.

The record as a whole conveys the district court's determination

Rule 54(b) requires a final decision on at least one claim and an express determination that no just reason exists to delay judgment. Count I was finally resolved: the January 12 order dismissed it with prejudice, and the February 4 separate judgment left nothing further for the district court to decide on that claim. The dispute concerns the sufficiency of the certification statement, not the finality of Count I itself.

Asterglen's certification motion identified the governing standard and asked the district court to determine that immediate review was justified. The district court granted that motion rather than merely directing clerical entry of judgment. It then entered a separate judgment confined to Count I. Read together, those acts show a deliberate decision to permit an immediate appeal. Asterglen submits that the Court should not disregard that decision because the short order omitted a familiar formula.

The panel reasoned that a reviewing court cannot infer the determination from silence, particularly where the remaining claims share facts and possible monetary offsets. Asterglen recognizes the importance of a reviewable explanation. It nevertheless contends that granting a properly framed motion is an affirmative ruling, not silence, and that the separate judgment confirms the intended consequence. Panel rehearing is warranted to address whether an express grant can incorporate the determination presented by the motion even when the order does not repeat every word.

Claim overlap does not eliminate certification authority

The opinion emphasized that Count I, Count II, and the counterclaim involve the Pilot License, the disputed July 8 communications, the July 18 audit, the July 22 termination, and possible setoff. Those connections are relevant to the district court's discretion, but they do not make certification categorically unavailable. Count I is a completed contract claim against Copper Kestrel. Count II alleges interference by Meridian under a different legal theory, and the counterclaim seeks losses attributed to immediate service disablement.

Asterglen does not ask the Court to supply findings the district court never made about litigation efficiency or hardship. It asks the Court to recognize that the district court had authority to weigh overlap and that its grant of the certification motion reflected acceptance of the grounds stated there. The prospect that some evidence may appear in both proceedings does not change the final character of the Count I dismissal. Nor does a possible later setoff reopen liability on the dismissed contract claim.

If the Court concludes that incorporation cannot satisfy the rule, the degree of overlap supports a request for further explanation rather than permanent loss of the appeal. The district court can state whether it considered the shared evidence, the pending counterclaim, and the risk of duplicative review. A focused statement would permit meaningful appellate scrutiny without requiring the parties to repeat record preparation and merits briefing after the remaining claims conclude.

A limited remand would protect appellate administration

Dismissal is not the only means of enforcing Rule 54(b)'s statement requirement. The panel could hold the appeal while directing the district court to clarify whether it made the necessary determination and, if so, to state its reasons. Such a limited remand would not presume that certification is proper. It would ask the court responsible for case management to articulate the judgment it intended to enter.

That procedure would preserve the distinction between district and appellate functions. The district court would assess whether there is no just reason for delay; this Court would then review the certification and determine its own jurisdiction. If the district court declined to certify or supplied reasons that could not support certification, dismissal would remain available. If it entered a supported determination, the completed merits submissions could be considered without a second appeal and duplicated filings.

The June 5 status certificate confirmed the missing statement but did not invite the district court to correct it. Asterglen submits that the deficiency was curable and that no party would be prejudiced by a prompt clarification. Copper Kestrel and Meridian could oppose certification in the district court and renew jurisdictional arguments here. Panel rehearing should therefore replace outright dismissal with a short remand retaining the appeal, or explain why that familiar corrective course is unavailable in this setting.

En banc consideration is warranted

The issue has significance beyond this dispute because district courts frequently enter abbreviated Rule 54(b) orders after receiving motions that state the governing test. A rigid rule that disregards an express grant unless the order repeats particular words can generate dismissals after full briefing, even when the district court plainly intended immediate judgment. A flexible rule that accepts any implication, by contrast, could weaken the requirement of a deliberate determination. The Court should provide a clear line between those positions.

Asterglen proposes a limited standard: an order expressly granting a motion that squarely requests the required determination, coupled with a separate judgment on a fully resolved claim, may be sufficient when the record makes the district court's decision unmistakable. At minimum, the court of appeals should consider a corrective remand before dismissal when the deficiency concerns articulation rather than claim finality. This approach respects the text while reducing unnecessary repetition.

En banc review would allow the full Court to address the institutional consequences and provide consistent direction for later certifications. The question concerns jurisdictional administration, not the truth of the parties' contract allegations. Asterglen does not seek a ruling that every abbreviated order is valid or that claim overlap is irrelevant. It seeks a rule that accounts for the entire certification record and reserves dismissal for cases in which the district court did not make, and declines to make, the necessary determination.

Effect of this timely petition on mandate

The June 8 judgment started the fourteen-day rehearing period, which expires today, June 22. This petition is timely because it is filed within that period. Under Federal Rule of Appellate Procedure 41(b), the ordinary mandate date cannot be calculated solely from expiration of the rehearing time once a timely petition has been filed. The rule compares the otherwise applicable date with the date seven days after entry of an order denying a timely rehearing petition and uses whichever is later.

No denial order exists as of this filing. Asterglen therefore does not propose a mandate date or assume how the Court will dispose of the petition. If the Court grants rehearing, the mandate consequences will follow the judgment entered after rehearing. If the Court denies rehearing, the clerk must calculate the seven-day period from that denial and then apply the later-of instruction. A separately filed and decided motion to stay mandate could supply another qualifying event under the rule.

Asterglen seeks no independent stay through this petition. It asks only that the clerk recognize the timing consequence of a timely Rule 40 filing and refrain from issuing mandate while the petition remains unresolved. This request preserves the Court's control over its judgment and prevents return of jurisdiction before the panel and the full Court complete consideration of the relief requested here.

Conclusion, certification, and service

Asterglen respectfully requests panel rehearing, withdrawal of the June 8 dismissal, and reinstatement of the appeal based on the district court's express grant of the certification motion and separate Count I judgment. Alternatively, Asterglen asks the panel to retain the appeal during a limited remand for a fuller Rule 54(b) determination. If panel rehearing is denied, Asterglen requests rehearing en banc to resolve the proper treatment of an abbreviated certification and the availability of corrective remand.

Counsel certifies that this petition presents the points of law and fact believed to have been overlooked or misunderstood and states the reasons full-court consideration is warranted. It relies on the district orders, separate judgment, certification motion, appellate filings, June 5 status certificate, June 8 opinion, and June 8 judgment already before the Court. No new evidence is submitted, and no request is made for a ruling on Section 9.2 or the amount of any claim.

The petition was filed electronically on June 22, 2026 and served that day on counsel for Copper Kestrel and Meridian Silt. Asterglen asks the clerk to circulate the combined petition as the rules require and to withhold mandate while it is pending. The requested disposition would preserve all merits defenses and all district-court proceedings outside the final Count I ruling.

Respectfully submitted,

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